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File No.: EXP202300293

RESOLUTION OF FILE OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On January 11, 2023, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant states that, on October 31, 2017, while working on a website, she was recorded in a private show that was published. According to her, that private video with her partner was disseminated across 1000 pornographic websites, and she fears it will reach her family and social networks. She indicates that it is affecting her psychologically and she is very scared because she cannot limit the dissemination.

Relevant documentation provided by the complainant:

The complainant provides several web addresses where she has detected the video published:

1. ***URL.1
2. ***URL.2
3. ***URL.3
4. ***URL.4
5. ***URL.5
6. ***URL.6
7. ***URL.7

SECOND: On January 12, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On January 13, 2023, measures were taken to attempt to remove the video from the various web addresses mentioned in the complaint, carrying out the following actions for each of the mentioned URLs:

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1.
URL: ***URL.1

- It is verified that the video is visible at the URL.
- The form available in the “Support” section is used to initiate a first removal request. Similarly, the email ***EMAIL.1 is used to launch a SOFT communication requesting the removal of the content.
- The website is exclusively in English and does not allow for a language change.
- The data controller is not specified, nor is the website administrator.
- It is a web portal that allows users who have previously registered on the portal by providing their username, password, and email to upload and share pornographic videos. The registration form does not obtain informed consent nor does it reference informative clauses on data protection.
- It is verified that the website hosts pornographic content for adults, but there is no mechanism to obtain a declaration or verify the age of the user accessing it. Access is direct with no restrictions.

2.
URL: ***URL.2

- It is verified that the video is visible at the URL.

- The option attached to the published video named "XXXXXXXXXX" is used to request its removal.
- The "Support" link is used to attempt to contact the responsible party and communicate the removal. An email is also sent to the address that appears on the website ***EMAIL.2.
- The website allows the anonymous uploading and publication of videos without the need to be registered. It also allows registration by providing a username, password, and email address.
- The website is exclusively in English and does not allow for a language change.
- It is verified that the website hosts pornographic content, but there is no mechanism to obtain a declaration or verify age; the user accesses the content directly.
- According to the data provided by WHOIS:
- The domain registrar is NameCheap, Inc. ***URL.12 with the following address to report content abuse (***EMAIL.3).
- The ASN is CLOUDFARENET, US. This provider offers proxy services to hide the true hosting provider.
- On January 16, 2023, the contact method provided by NameCheap, Inc. (form to report content abuse) is used to request cooperation in the removal of this video.

3.

URL: ***URL.3

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- o There is no privacy policy and it is not indicated who is responsible for the processing of the data handled by the portal. The entire website is in English.
- o There is no mechanism to declare or verify the age of the user visiting the web portal.
- o The portal allows user registration by providing a username, password, and email. Once registered, it allows users to upload and publish videos. The registration form is the same as that on the domain anon-v.com, suggesting some interrelation between the web portals.
- o There is no information about cookies or ways to obtain user consent for their installation. The installation of cookies is confirmed upon accessing the portal, including the cookie kt_ips, which obtains the user's IP address.
- o On January 13, 2023, the contact form available on the portal itself was used to make an initial request for content removal.

4.

URL: ***URL.4

- o It is confirmed that the video has already been removed from this portal.
- o The web portal hosts pornographic content. There are different language settings that allow the site to be viewed in Spanish, English, Portuguese, French, Italian, German, and Dutch. By default, it is displayed in Spanish.
- o The responsible party for the processing of the data handled by the portal is not specified.
- o There is a section called "Privacy Policy & 2257 Statement" that users must accept when registering on the portal; this section is exclusively in English and informs about the types of data collected by the web portal and how it is used. For the registration of new users, a username, password, and email are requested, with a checkbox that is activated by default to collect consent. Diligence is created.
- o The web portal does not use a mechanism to declare or verify the age of the visiting user. Diligence is created.

5.

URL: ***URL.5

- o Upon accessing the link provided in the complaint, a text appears indicating that the content of this video is no longer available.
- o There is a mechanism to obtain the user's age declaration by showing a panel or pop-up window where the user must click a button affirming that they are of legal age. This informational panel contains text exclusively in English.

- o There is a Privacy Policy exclusively in English.
- o The web portal offers the option to change the language in which the content is displayed, providing Spanish among multiple options.
- o There is a section of “Terms of Use” where it is indicated that the responsible party is BigBang Media LLC.
- o The site allows users to upload and share videos anonymously.

6.

URL: ***URL.6

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- o Upon accessing the link provided in the complaint, it is specified that the video has been removed.
- o The website allows viewing content in different languages, including Spanish. By default, it is active in English.
- o There is no mechanism to obtain the declaration or verification of age of the users accessing the portal.
- o There is a privacy policy in English (exclusively) which informs that the responsible party for processing is Youngtek Solutions Limited ID 220270 (Address Alvonos 1 Maria House Nicosia 1075 Cyprus).
- o The site allows user registration by providing a username, password, and email. Registered users can upload and share videos on the portal.

7.

URL: ***URL.7

- o Upon accessing the link provided in the complaint, it is indicated that the intended video has been removed.
- o There is no mechanism to obtain the declaration or verification of age of the user visiting the portal.
- o There is a Privacy Policy in English exclusively, with text indicating that it was updated on October 17, 2011, providing information about the types of data collected and how they are used, omitting the identification of the responsible party for data processing. There is a section with the terms of use of the website specifying that the web portal belongs to ERA Technologies Ltd. According to the information available on the internet, the headquarters of this organization is located in the United Kingdom.
- o It allows user registration on the portal by requesting the data “username,” “email,” “password,” “sexual orientation,” with a checkbox to confirm being of legal age and another to accept the previously described privacy policy.

In addition to the URLs that were provided to us in the complaint by the claimant, an investigation of the public internet space is conducted in search of the dissemination of the reported video on other similar web portals, detecting the following URLs where it is also published:

1.

URL: ***URL.8

- o It is verified that the content is published as of January 13, 2023.
- o There is a form titled “Support and Complaints” that allows a request for the removal of the video to be made through it.
- o According to WHOIS service information:
 - ☐ The domain registrar is Danesco Trading Ltd.
 - ☐ The ASN is DataWeb Global Group B.V.

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On January 16, 2023, a new request was made to both the domain registrar and the hosting provider ASN, requesting cooperation for the removal of the video from the website.

On January 17, 2023, it was verified that the content had already been removed from the internet.

- There is no mechanism to obtain the declaration or verification of the age of the user accessing the content of the portal.

- The website allows viewing content in different languages, including Spanish.

- There is no privacy policy nor is there any information provided about the data controller.

2.

URL: ***URL.9

- It was verified that as of January 16, 2023, the video is published at the URL.

- The email published on the portal ***URL.13 was used to initiate a content removal measure.

- On January 17, 2023, it was verified that the content had already been removed from the previous URL.

- There is no mechanism to obtain the declaration or verification of the age of the user accessing the site, allowing unrestricted access to the content. This is duly noted.

- The portal allows configuring the language in which the content is displayed, offering Spanish among the various options.

- The site contains a privacy policy published in English, specifying that the data controller is AVS Group Ltd.

3.

URL: ***URL.10

- It was verified that as of January 16, 2023, the video is published at the URL.

- On January 16, 2023, the contact form was used to request the removal of the video.

- On January 18, it was verified that the content had been removed from the website.

- The privacy policy is in English, has an update date of 2014, and does not specify the data controller. There is a section with terms of use for the website stating that the services of the portal are provided by Sun Social Media, Inc.

- The website allows the uploading of videos after registering on the portal, requesting the following data during the registration process: username, email, password, gender, sexual orientation (Lesbian, Gay, Transsexual), country, date of birth.

4.

URL 10: ***URL.11

- As of January 16, 2023, the video is published at the URL.

- On January 16, 2023, the email ***EMAIL.4 was used to request the removal of the material.

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- On January 17, 2023, it was verified that the video had been removed from the previous URL.

- Upon accessing the portal, the default display language is shown in Spanish, and a pop-up advertisement is launched that shows the user ads based on their geographical location.

- There is no mechanism to obtain the declaration or verification of the age of the user accessing the portal.

- The privacy policy is in English and specifies that the portal is operated by AVS Group Ltd.

On January 18, 2023, it was verified that the content continues to be visible only on the following previously analyzed websites:

- On the portal ***URL.14

- On the portal ***

- On the portal ***

After a new inquiry to the WHOIS service, it was identified that the hosting provider of these sites is hidden behind the services of CLOUDFARE INC, a company dedicated to providing Proxy and VPN services to facilitate the concealment of websites.

On January 18, 2023, it was decided to send an email to the address provided on the CLOUDFARE website (**EMAIL.5) requesting cooperation to forward our content removal request to the responsible parties of the aforementioned domains. On January 20, 2023, a response was received from CLOUDFARE, INC with the following content:

(...)

With the following unofficial translation made by the present inspector:

“Dear XXX:

We are writing in response to your letter dated January 18, 2023, regarding www.anon-v.com, cambox.to, and camseek.tv (the “Sites”). We take our obligations under the General Data Protection Regulation (“GDPR”) very seriously, and we are eager to cooperate with you on this particular matter. First, to respond to this request, we would like to explain how Cloudflare, Inc. (“Cloudflare”) operates and clarify its role concerning the websites of its clients. Cloudflare is a U.S.-based company that provides cloud-based infrastructure services to website operators. More specifically, Cloudflare offers network service solutions that include security services, a content delivery network, and registration services. Because Cloudflare is a reverse proxy, our IP addresses may appear in WHOIS, DNS, and hosting provider records for websites that use our services, even though Cloudflare does not host the websites. We have developed robust and effective systems to address complaints of abuse of websites that may use Cloudflare's services, including complaints about spam, malware, phishing, copyright infringement, and trademark violations.

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harassment, unauthorized use of personal data, and other issues. This policy is available at cloudflare.com/abuse. The policy states that Cloudflare will send all abuse reports that appear legitimate to the responsible hosting provider and the website owner. If there is a specific abuse report that you would like us to forward to the website owner, please send us a copy of the report, and we will send it as soon as possible.

In response to a legitimate abuse report, we will provide the complainant with the contact information of the responsible hosting provider so that they can be contacted directly. This action allows the complainant and the host to work together to resolve certain requests, such as a data removal request (something that Cloudflare cannot do).

In response to your request, we confirm that (a) Cloudflare is not the hosting provider of the Sites and (b) in accordance with our policy, we have forwarded the request to the actual hosting provider for the Sites. Additionally, although we typically ask you to complete an abuse report, we are providing limited contact information about the hosting providers and domain registrants below as a courtesy. Please note that Cloudflare does not guarantee the accuracy of this information.

(...).

If in the future you identify a domain using Cloudflare's service that you believe is processing personal data without authorization, please use our online abuse reporting form to find the identity of the host:

***URL.15.

Please note that according to our Privacy Policy and Terms of Service, non-public information about Cloudflare customers is not disclosed except when legally required by an appropriate legal process, such as a subpoena, court order, or other valid legal process. It is our policy to notify users about requests for their information prior to disclosure unless we are prohibited from doing so by law or court order (for example, an order under 18 U.S.C. § 2705(b)). Cloudflare responds to user information requests from foreign law enforcement agencies that are issued through a U.S. court, either through a mutual legal assistance treaty or a letter rogatory. It is our policy to respond to such requests ordered

by a U.S. court when properly fulfilled.

Our hope is that the above information will help you better understand Cloudflare's services. If you have further questions, please do not hesitate to reach out and ask.

Best regards,

A.A.A.

Privacy Director

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Considering the response provided by CLOUDFARE INC, on January 20, 2023, an email was sent requesting collaboration for the removal of content to the following hosting providers:

- To provider XXXXXX via the address provided by CLOUDFARE (**URL.16).

- To provider XXXXXX via the address provided by CLOUDFARE (**EMAIL.6).

On January 21, 2023, it was verified that the content had been successfully removed from all web portals where it had been identified.

LEGAL GROUNDS

I

Competence

According to the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Conditions for Consent

In relation to the conditions for consent, Article 7 of the GDPR provides:

"1. When processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from the other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding."

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3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of the processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed of this. It shall be as easy to withdraw consent as it is to give it.

4. In assessing whether consent has been given freely, consideration shall be given, to the greatest extent possible, to whether, among other things, the performance of a contract, including the provision of a service, is conditional upon consent to the processing of personal data that is not necessary for the performance of that contract.

III

Legitimacy for Processing

The physical image of a person, in accordance with Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

Including images that identify or make identifiable a person, as well as their name, in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. And it is the person who uploads the personal data and images that can be viewed without any limitations who must demonstrate that they have that consent.

For this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following conditions applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation of pre-contractual measures at the request of the data subject;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

IV

Conclusion

To identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

"1. Before the adoption of the decision to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the admission decision or from the date of the decision to initiate when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

After conducting the investigations mentioned in the Facts, the following has been concluded:

At the time of initiating the investigative actions, the video subject to the complaint was published on three of the seven web portals provided in the complaint (**URL.17, **URL.18, **URL.19), with no publication found on the remaining portals (...).

The video has been successfully removed from all the aforementioned portals after various removal measures were taken directed at the contact addresses and forms enabled on the portals.

Most of the portals that published the video do not specify the controller of the personal data processed by the website, allowing in many of them the uploading and sharing of videos anonymously by any user visiting the portal, making it impossible to identify the individuals responsible for the publication.

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Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es